

TERMS OF USE AGREEMENT

AUTOMOTIVE HACKATHON 2026 WEBSITE

ARTICLE 1: DEFINITIONS

1.1. Agreement: means the agreement with which the User must comply when using the website fptautomotive-hackathon.com, together with all amendments, supplements, and updates thereto (if any).

1.2. Automotive Hackathon 2026: means an automotive competition sponsored and organized by FPT Software.

1.5. User: means an individual who uses the Website to register for participation in Automotive Hackathon 2026 (hereinafter also referred to as “You”).

1.3. FPT Software or FSOF: means FPT Software Company Limited, the organizer of Automotive Hackathon 2026.

1.4. Personal Information: means information associated with the identification of an individual, including name, age, address, identity card/citizen identification number, telephone number, email address, bank account information of the User, and other information as prescribed by applicable law.

1.8. Website: means the website fptautomotive-hackathon.com used by FPT for the purpose of publishing information related to Automotive Hackathon 2026 and receiving competition registration information from Users.

ARTICLE 2: ACCEPTANCE OF TERMS AND AMENDMENTS

2.1. By accessing the Website and/or registering to participate in the Competition, the User agrees to and accepts the terms set forth in this Agreement.

2.2. If You do not agree with any provision of this Agreement, please do not register an account and/or immediately cease accessing or using the Website.

ARTICLE 3: ACCOUNT REGISTRATION AND USE

3.1. During the process of registering for and using an account on the Website, the User shall provide complete, truthful, and accurate information.

If any information is found to be inaccurate or untruthful, we reserve the right to suspend, temporarily disable, or permanently block Your account on the Website and to apply other handling measures in accordance with the Competition Rules.

3.2. The User represents and warrants that, in all circumstances, the User is the lawful holder of the account; the User shall not act in the name of or on behalf of any other person in conducting transactions through such account. All transactions conducted through the account shall be deemed performed by the User, and the User shall be responsible for all such transactions.

3.3. The User shall bear full responsibility for maintaining the confidentiality and use of his/her account, shall not use another User's account, and shall not share his/her account information with any other User.

3.4. Each individual may register for and use only one (01) account on the Website. Any acts of sharing, impersonation, or use of another person's or another team's account are strictly prohibited.

3.5. If any violation of this Agreement or any fraudulent conduct in the Competition is detected, FPT Software shall have the right to permanently ban the account without prior notice to the User immediately upon detection.

ARTICLE 4: LIMITATION OF LIABILITY AND DISCLAIMER OF WARRANTIES

4.1. FPT Software shall not be liable for any issue arising from system failures or transmission/network errors occurring during Your use of the Website.

4.2. In the event of force majeure, including but not limited to application platform technical incidents, server failures, transmission/network failures, natural disasters, changes in government policy, and the like, FPT Software undertakes to use reasonable efforts to mitigate any resulting risks or damages.

4.3. If risks or damages arise in cases of force majeure, including but not limited to technical incidents, server failures, transmission/network failures, natural disasters, changes in government policy, and the like, the User agrees that FPT Software shall be exempt from liability in such circumstances.

ARTICLE 5: PROHIBITED USER CONTENT AND CONDUCT WHEN USING THE WEBSITE

Users are prohibited from taking advantage of the products, competition platform, or activities on the Website for any of the following purposes:

5.1. Opposing the State of the Socialist Republic of Vietnam; harming national security, social order or safety; undermining national unity; propagating wars of aggression or terrorism; or inciting hatred or conflict among nations, ethnic groups, or religions.

5.2. Propagating or inciting violence, obscenity, depravity, crime, social evils, superstition, or conduct contrary to the fine customs and traditions of the nation.

5.3. Strictly discussing political matters.

5.4. Disclosing state secrets, military, security, economic, foreign affairs secrets, or other confidential information as prescribed by law.

5.5. Providing distorted, defamatory, or reputation-harming information that infringes the prestige of organizations or the honor and dignity of individuals.

5.6. Advertising, promoting, or trading in prohibited goods or services; or disseminating prohibited journalistic, literary, artistic, or published works.

5.7. Unlawfully obstructing, disturbing, or damaging the national domain name server system, Internet service infrastructure, or information on the network; or obstructing access to information and lawful use of Internet services by organizations or individuals.

5.8. Unauthorized use of passwords, encryption keys of organizations or individuals, private information, personal information, or Internet resources.

5.9. Impersonating any organization or individual or disseminating false or misleading information online that infringes the lawful rights and interests of organizations or individuals.

5.10. Creating unauthorized links to the domain names of organizations or individuals.

5.11. Creating, installing, or disseminating malicious software or computer viruses; unlawfully infiltrating, taking control of information systems; or creating Internet attack tools.

5.12. Disseminating, spreading, or encouraging any activity intended to interfere with, damage, or unlawfully access the data of the provided products or server systems.

5.13. Logging in without authorization, attempting unauthorized login, or causing damage to server systems.

5.14. Any conduct or attitude that damages the reputation of Automotive Hackathon 2026 products or FPT Software in any form or by any means.

5.15. Any other acts prohibited under the applicable laws of Vietnam.

ARTICLE 6: CONTENT POSTED WHEN USING THE WEBSITE

6.1. You acknowledge that all content posted by You during Your use of the Website, whether publicly available, restricted, or privately submitted, is solely Your personal responsibility. You are responsible for the opinions, views, and content that You post, provide, or discuss. The User shall bear full responsibility for any dispute arising between

the User and any third party in connection with the information or content posted by the User on the Website.

6.2. Any content that You post, including personal information provided for account registration, may be retained or disclosed where required by law or by competent authorities and/or where we have reason to believe that such retention or disclosure is necessary to ensure legal compliance or protect the interests of the User community.

6.3. FPT Software and its authorized persons reserve the right to process, including without limitation removing, any invalidly posted content or content that violates applicable rules or standards, without incurring any liability for any loss You may suffer as a result of such removal.

ARTICLE 7: INTELLECTUAL PROPERTY RIGHTS

7.1. Account registration (including email name, username, and profile picture) must comply with the intellectual property rights of organizations and individuals.

Account details (including email name, username, and profile picture) must not impersonate or

cause confusion with any other organization or individual and must not be offensive or inappropriate.

7.2. By submitting an Entry or sharing it with FPT, You agree to grant FPT a non-exclusive, royalty-free, irrevocable, worldwide license during the competition and post-production period, authorizing FPT and entities designated by FPT to exercise the following rights: (a) to receive, store, copy, test-run, evaluate, conduct security testing on, display, and present the Entry for organizational and judging purposes; (b) to use part or all of the Entry (including images, videos, descriptions, screenshots, and documents) for communications and promotional purposes relating to the Competition; and (c) to make reasonable formal edits (including formatting, video trimming/editing, and presentation standardization) for communications purposes.

7.3. The Website may contain links to and descriptions of content from other sources. If the User wishes to re-use such content, the User shall be responsible for contacting the original source and content owner directly.

7.4. Where we detect, have grounds to assess, or receive a valid notice that content posted by the User on the Website infringes the intellectual property rights or personal data of another party and/or gives rise to liability on the part of the User, we shall have the right to

immediately remove such content from the Website without prior notice and without incurring any liability in connection with such removal.

7.5. You are not permitted to use the logos, slogans, trademarks, or other intellectual property assets of FPT Software unless we have expressly approved such use in writing. Accordingly, You agree not to display, use, exploit, or otherwise deal with FPT Software's intellectual property assets, not to act in the name of FPT Software, and not to combine or use the FPT brand or logo to communicate, distribute, transfer, or exploit any Entry in any manner without FPT's prior written consent.

ARTICLE 8: GOVERNING LAW AND DISPUTE RESOLUTION

8.1. This Agreement is made and governed in accordance with the laws of Vietnam.

8.2. Any dispute arising between You and FPT in connection with this Agreement shall be resolved in accordance with the applicable laws of the Socialist Republic of Vietnam.

8.3. If any dispute is not resolved within thirty (30) days from the date on which one Party notifies the other Party in writing of the dispute, either Party shall have the right to bring the matter before a competent court in Hanoi in accordance with law. The losing party shall bear all court proceedings costs.

ARTICLE 9: SUSPENSION/TERMINATION OF SERVICE PROVISION

9.1. We reserve the right to suspend part or all of the Website and/or Services at any time in cases including but not limited to: (i) system maintenance or upgrades; (ii) remediation of technical incidents or cybersecurity incidents; (iii) system overload; (iv) requests from competent state authorities; (v) force majeure events or other circumstances that we deem necessary to ensure the safety and stability of the Services.

9.2. We reserve the right to unilaterally terminate the operation of the Website and to terminate, amend, or change part or all of the provision of the Services without prior notice to the User.

9.3. When the Services are suspended or terminated:

- a) The User's access to the account, content, features, and/or rights to use the Services may be interrupted during the suspension period or from the effective time of termination.
- b) Certain data, content, transaction/registration history, participation records, or related information may become inaccessible during the suspension period.

c) In the event of termination of the Services/Website, we may close accounts, disable access rights, and/or cease accepting or recording requests arising after the time of termination.

d) We may retain, back up, delete, or conceal data in accordance with our data retention policies, legal requirements, and/or requests from competent authorities. The User is responsible for proactively backing up important data (if any) before the Services are terminated, to the extent permitted by the Services.

9.4. We will endeavor to provide prior notice to the User of any suspension or termination of the Services through the Website, email, in-system notices, or other means of communication where practicable. In cases of emergency incidents, security protection, requests from competent state authorities, or force majeure, we may provide notice afterward.

9.5. To the fullest extent permitted by law, we shall not be liable for any damages arising from the suspension or termination of the provision of Services under this Agreement, including but not limited to data loss, business interruption, loss of business opportunity, or other indirect damages.

9.6. The suspension or termination of the Services shall not affect the validity of any provisions intended to survive termination, including but not limited to intellectual property rights, disclaimers, limitation of liability, dispute resolution, and any outstanding financial obligations (if any).

ARTICLE 10: EFFECTIVENESS

10.1. The terms of this Terms of Use Agreement may be updated or amended at any time without prior notice to the User. FPT Software will publish such changes and supplements on the Website. By continuing to use the Website or participating in activities within the scope of the Competition in any other form, You agree to the corresponding updated changes to the Agreement from time to time. Unless otherwise stated in the relevant notice of amendment, supplement, or replacement, such amendments, supplements, or replacements shall take effect immediately upon publication.

10.2. If one or more provisions of this Agreement conflict with applicable law and are declared invalid by a court, such provision(s) shall be revised to conform with applicable law, and the remaining provisions of this Agreement shall remain in full force and effect.

10.3. Our failure to exercise, delay in exercising, or omission to require the User to perform any obligation, remedy, or provision under this Agreement shall not be construed as a waiver of such right. Any approval, indulgence, or failure to act in respect of any single

breach by the User shall not constitute a waiver of the right to take action in respect of any other or repeated breach, nor shall it limit our right to continue exercising any other rights or remedies under this Agreement and/or applicable law. The exercise of any right or application of any remedy shall not preclude the continued exercise of any other right or remedy, and shall not exclude any right or remedy available under applicable law.

10.4. This Agreement shall be legally binding as a contract. The User understands that this is an electronic contract; the legal validity of an electronic contract may not be denied solely because it is expressed in the form of a data message under the Law on Electronic Transactions. By clicking the “I agree” button, the User fully agrees to and understands the terms of this Agreement, which shall take effect from that time.

